

25STCV07823 25STCV07823

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Case Number: 25STCV07823 Hearing Date: August 26, 2026 Dept: 406

ELISE OKOLITA,

Plaintiff,

v.

ASCENTAL, INC., et al.,

Defendants.

Case No.: 25STCV07823

Hearing Date: August 26, 2026

[TENTATIVE]

order RE:

plaintiff's motion to compel further
responses

BACKGROUND

On March 19, 2025, Plaintiff Elise Okolita filed this action against Defendants WGSN LLC and Joshua Fishelberg, alleging violations of FEHA, violation of CFRA, and wrongful termination.

Plaintiff alleges that Defendants refused to accommodate her disabilities after she was seriously injured in an auto

accident. Plaintiff further alleges that she was sexually harassed by her supervisor, Defendant Fishelberg. Fishelberg also allegedly created a hostile working environment by making inappropriate comments about Plaintiff's disabilities, assigning Plaintiff extra work, and micromanaging Plaintiff unnecessarily. Plaintiff alleges that Defendants retaliated against her for rebuffing Fishelberg and for reporting the harassment, which ultimately culminated in her termination.

On July 17, 2026, Plaintiff filed the instant motion to compel Defendant WGSN's further responses to special interrogatories. Defendant filed an opposition on August 13, 2026. Plaintiff filed a reply on August 19, 2026.

LEGAL STANDARD

Upon receiving responses to its discovery requests, the propounding party may move for an order compelling further responses if the responses are incomplete or evasive, or objections are without merit or too general. (Code Civ. Proc., §§ 2030.300(a), 2031.310(a), 2033.290(a).)

DISCUSSION

SROG Nos.

15 and 16 ask for the identity of all persons who were interviewed or received a legal hold notice and acknowledgment relating to a particular employee's complaint regarding her experience at the May 2022 WGSN conference.

"The disclosure of the names and addresses of potential witnesses is a routine and essential part of pretrial discovery." (Puerto v. Superior Court (2008) 158 Cal.App.4th 1242, 1249-50.) "Me too" evidence of similar complaints is relevant. (See Pantoja v. Anton (2011) 198 Cal.App.4th 87, 115.)

Here, Plaintiff alleges harassment and retaliation stemming from the May 2022 conference. Thus, other similar complaints arising from the same event are relevant. SROG Nos. 15 and 16 seek information on one such complaint. Defendant argues that the individuals who were interviewed or who received litigation notices are not themselves "me too" witnesses who suffered harassment or adverse employment actions. However, relevant

evidence is not limited to the single individual who was subjected to mistreatment. Individuals who witnessed mistreatment may possess relevant information as well, regardless of whether they themselves suffered mistreatment. The identity of such witnesses is relevant to the case or reasonably calculated to lead to admissible evidence. (See Code Civ. Proc., § 2017.010.)

Defendant proposes to limit SROG No.

15 to individuals who were interviewed and terminated on or before September 30, 2023. This is derivative of Defendant's erroneous position that the only relevant witnesses are those who suffered adverse employment actions. Again, witnesses to a "me too" incident are relevant regardless of whether they themselves suffered retaliation. Moreover, the SROGs are inherently limited in scope because they pertain to a single employee's complaint regarding the May 2022 conference. Defendant does not dispute that this was a relevant "me too" incident. Thus, witnesses to the incident are relevant, and they do not become irrelevant merely because they remained employed past September 30, 2023.

Defendant has not shown that the information constitutes a serious intrusion of privacy, but in any event, the need for disclosure outweighs the interest in privacy. (See *Williams v. Sup. Ct.* (2017) 3 Cal.5th 531, 552.) "[I]t is only under unusual circumstances that the courts restrict discovery of nonparty witnesses' residential contact information." (Puerto, *supra*, 158 Cal.App.4th at p. 1254.)

Defendant has not shown that the information is privileged. (See *Kizer v. Sulnick* (1988) 202 Cal.App.3d 431, 439 ["The party asserting a privilege has the burden of proof regarding the existence of the privilege"].) Counsel's selection of witnesses "may, in some instances, reveal the attorney's impressions of the case" (*Coito v. Superior Court* (2012) 54 Cal.4th 480, 501), but Defendant has not shown that the specific information sought in SROG No. 16 is privileged. Defendant has not shown that the litigation hold notices reflect "premeditated and carefully considered selectivity" such that disclosing the recipients would reveal counsel's impressions or strategy. (*Ibid.*)

CONCLUSION

Plaintiff's

motion to compel further responses is GRANTED. Defendant WGSN shall provide further responses within 20 days of today. Sanctions are denied as the parties

acted with substantial justification.